

Website Terms and Privacy Policies

Deaf Shark Coffee | Privacy Policy followed by Terms of Service | Attorney review copy

Business rules updated September 14 2026. New Jersey counsel should still approve this draft before publication, and customer-facing promises must match the live checkout and store signage.

1 Who we are and what this policy covers

This Privacy Policy describes how Deaf Shark Coffee, LLC, doing business as Deaf Shark Coffee (Deaf Shark, we, us, or our), collects, uses, discloses, and retains personal information when you use deafsharkcoffee.com, create an account, place a pickup order, participate in rewards and promotional programs, contact us, subscribe to marketing, apply for work, or otherwise use our online services. It does not govern information processed independently by a third party under that party's own privacy policy.

2 Personal information we collect

The information we collect depends on the features you use and may include:

- Account and identity information, including name, email address, phone number, account identifier, password credential maintained through our authentication system, profile image, the policy versions and time you accepted them, and your confirmation that you meet the account age requirement or have required guardian involvement.
- Google sign-in information, including the name, email address, profile information, and identifier Google makes available when you choose Google sign-in. We do not receive your Google password.
- Order information, including ordered items, selections, customizations, special instructions, prices, taxes, discounts, pickup selection and estimate, status, customer name and phone number, payment method category, and account order history.
- Rewards and eligibility information, including points and redemption history, birthday month and day, welcome and birthday benefits, referral activity, promotions, and a Kean University email address and verification date if you request the student discount.
- Communications and marketing choices, including contact-form messages, our correspondence, newsletter status, consent language, and the time and source of a marketing choice.
- Employment information, including contact details, availability, work-related responses, age-of-majority response, resume and file metadata, and application status.
- Device, network, and security information, including IP address, browser or device information, user agent, requested pages, timestamps, referring page, session and cookie identifiers, rate-limit records, and information used to detect fraud, spam, or security incidents.

Please do not place sensitive medical information in an order note, contact message, or job application. Call the shop before ordering if you need to discuss a food allergy.

3 Payments

The payment choices shown at checkout are the choices currently available. Orders marked for payment at pickup are paid at the store. Online card payments are processed by Stripe. Card and other payment credentials are submitted directly to Stripe and governed by Stripe's privacy policy. We may receive limited details such as a transaction identifier, payment status, card brand and last four digits, refund status, and fraud signals, but we do not intend to receive or store a full payment-card number or card security code on our website servers.

4 How we collect and use information

We collect information directly from you, automatically when you use the website, from Google when you choose Google sign-in, from providers supporting the features you use, and from staff when they update an order, application, or rewards record. Website order information is managed in our website system and does not flow automatically into Genius POS.

- Provide, secure, maintain, troubleshoot, and improve the website.
- Create and authenticate accounts and respond to account-security requests.
- Accept, prepare, fulfill, support, and maintain records of pickup orders.
- Administer rewards, referrals, birthday benefits, promotions, and student discounts.
- Send order-ready, verification, password-reset, and other service communications.
- Send marketing only in accordance with your choices and applicable law.
- Respond to messages, feedback, privacy requests, and customer-service concerns.
- Review employment applications and communicate with applicants.
- Detect and prevent fraud, spam, misuse, and security incidents.
- Comply with legal, tax, accounting, recordkeeping, and dispute-resolution needs.

5 Cookies and similar technologies

We use cookies, local storage, and similar technologies needed for sign-in, security, fraud prevention, cart and session functions, preferences, and basic website operation. Blocking necessary technologies may prevent parts of the website from working. We do not currently use advertising pixels or personal information for targeted advertising. Before introducing optional analytics or advertising technologies, we will update this policy and provide notice or choices required by applicable law.

6 When we disclose information

We do not sell personal information for money, rent customer lists, or disclose personal information for another company's independent direct marketing. We may disclose information to service providers supporting hosting, databases, file storage, security and bot prevention, authentication, email delivery, text messaging, payment processing, and professional services. Depending on the feature, these providers may include Cloudflare, Google, an email-delivery provider, Twilio, and Stripe.

We may also disclose information when reasonably necessary to comply with law or a lawful request, protect customers or the business, investigate fraud or misuse, enforce agreements, obtain professional advice, or complete a merger, financing, sale, or transfer of business assets. Employment applications are not disclosed to unrelated parties for their own marketing.

7 Email and text messages

Account, order, verification, password-reset, and security messages are service communications. If you provide a mobile number for an order and agree to receive an order-ready text, we may send a transactional text when the order is ready. Message and data rates may apply. You may reply STOP or contact us to withdraw permission for future texts.

Promotional email is optional and is not required to create an account or place an order. When promotional email becomes available, you may unsubscribe using the link in any marketing email or by contacting us. We may retain a minimal suppression record so that we can continue honoring an opt-out.

8 Retention

We retain each category of information only for as long as reasonably necessary for the purposes described here. The period depends on whether your account remains active, whether an order or request is still open, warranty and customer-service needs, fraud and security risks, tax and accounting requirements, employment-record rules, and potential disputes. Closing an account removes access to the account but does not require us to erase transaction, suppression, security, or other records that we are permitted or required to retain. When information is no longer needed, we delete, anonymize, or securely dispose of it. Backup copies are removed through the ordinary backup-rotation process.

9 Security and incident response

We use administrative, technical, and organizational safeguards designed for the nature of the information we maintain, including access controls, encrypted network connections, authentication, rate limiting, and security screening. No system can be guaranteed completely secure. If a security incident affects personal information, we will investigate and provide notices required by applicable law. Keep your credentials confidential and contact us promptly if you suspect unauthorized account activity.

10 Your choices and privacy requests

You may ask to access, correct, or delete personal information associated with you, obtain a copy of information you provided, or close your account by emailing help@deafsharkcoffee.com. Account settings provides authenticated download and account-closure options. We will verify requests to protect customer information. We may deny or limit a request where permitted or required for security, fraud prevention, legal compliance, recordkeeping, another person's privacy, or the establishment or defense of legal claims. If applicable law gives you additional rights or a right to appeal a decision, we will honor those requirements.

11 Children and teenagers

The website is a general-audience service and is not directed to children under 13. You may not create an account if you are under 13. Customers aged 13 through 17 may use an account only with the permission and involvement of a parent or legal guardian. If you believe a child under 13 provided personal information, contact us so we can investigate and take appropriate action.

12 Changes and contact

We may update this policy when our services, vendors, or legal obligations change. We will post the updated version with a revised effective date. We will provide additional notice or request consent before a materially different use where required by law.

Email privacy questions or requests to help@deafsharkcoffee.com, call (908) 481-8884, use the website contact page, or write to Deaf Shark Coffee, 900 Green Lane, Union, NJ 07083.

Deaf Shark Coffee Terms of Service

Effective September 14 2026 | Draft for New Jersey attorney review

Business rules updated September 14 2026. New Jersey counsel should still approve this draft before publication, and customer-facing promises must match the live checkout and store signage.

1 Agreement and business identity

These Terms of Service govern deafsharkcoffee.com and the online services provided by Deaf Shark Coffee, LLC, doing business as Deaf Shark Coffee (Deaf Shark, we, us, or our), at 900 Green Lane, Union, New Jersey 07083. By creating an account or placing an order, you agree to these Terms and acknowledge our Privacy Policy. Marketing consent is separate and optional.

2 Age requirements

You must be at least 13 to create an account. If you are 13 through 17, you may use an account and place an order only with the permission and involvement of a parent or legal guardian. The website is not directed to children under 13, and children under 13 may not create accounts or provide personal information through the website.

3 Accounts

Provide accurate information, maintain only one personal account, and keep your login credentials confidential. Accounts may not be sold, assigned, or used to obtain duplicate rewards. Notify us promptly at help@deafsharkcoffee.com if you suspect unauthorized access. You are responsible for activity you authorize, subject to rights that cannot be limited by law.

You may request account closure through an available account setting or by contacting us. Closing an account ends access to its order history and forfeits all unused points and promotional benefits. Purchased gift-card funds remain separate. We may retain transaction, security, suppression, and other records as explained in the Privacy Policy and permitted or required by law.

4 Pickup orders and acceptance

Website orders are for pickup at 900 Green Lane, Union, New Jersey. We do not offer shipping or delivery through the website. The ordering options displayed at checkout are the options currently available. Guest checkout may be offered only when online payment is available; otherwise, an account is required.

Submitting an order is an offer to purchase. We accept it when we display or send a valid order confirmation. We may reject or cancel an order because of an unavailable item, pricing or description error, suspected fraud, store closure, equipment problem, or inability to fulfill the order. Review all items, customizations, contact details, pickup selections, discounts, and totals before submitting.

5 Payment

We may require online payment for a guest order or an account's first order. A returning account may be offered payment at pickup. The actual payment choices shown at checkout control for that order. Website order information does not automatically transfer into Genius POS; staff process pay-at-pickup orders at the store.

Online card payments are processed by Stripe, whose terms and privacy policy may also apply. You authorize the total shown when you submit a paid order. Deaf Shark does not intend to receive or store a complete card number or card security code. Any card surcharge will be clearly and conspicuously disclosed before payment and will not exceed our actual cost to process that credit-card payment or any lower legal limit.

6 Prices taxes substitutions and availability

Prices and availability may change for future orders. Applicable taxes, discounts, and fees are shown before submission. We will not increase the price of a confirmed order or substitute a more expensive item without your agreement. If an item is unavailable, we may contact you with an alternative or remove it and prepare the remainder. An amount paid for an item we do not provide will be refunded.

7 Pickup changes cancellations and no shows

Pickup times are estimates. Call (908) 481-8884 immediately if you need a change or cancellation. We cannot guarantee changes after preparation begins. If you paid online and cancel before preparation begins, we will provide a full refund. Once preparation begins, all sales are final. Food, beverages, merchandise, and other purchases cannot be returned or refunded because you changed your mind, preferred a different taste, arrived late, or did not collect the order. If we cancel a paid order, we will provide a full refund.

Tell us promptly if an item is incorrect, missing, defective, or has a substantiated quality issue. We may choose to remake or replace an affected item, but do not promise a refund after preparation begins except where applicable law requires one. Any refund generally returns to the original payment method; bank processing times vary. Nothing here limits a remedy that applicable law requires.

8 Food allergies

Our kitchen and bar handle dairy, tree nuts, peanuts, wheat and gluten, soy, eggs, and sesame. Shared equipment and preparation areas create a risk of cross-contact. We can discuss ingredient requests but cannot guarantee that an item is completely free of an allergen. For a food allergy, call the shop before ordering and speak with a team member; do not rely only on an online note.

9 Rewards discounts and promotions

Rewards are free promotional benefits for eligible account holders. Current earning and redemption rules are displayed with the program or offer. Points are earned only on qualifying completed purchases, have no cash value, and are not gift cards. They cannot be purchased, transferred, or sold. We may correct errors and remove benefits obtained through fraud, duplicate accounts, returns, or misuse.

Each award of points expires 12 months after the date it is earned. Redemptions use the oldest unexpired points first. Closing an account forfeits all unused points. Rewards, points, student discounts, and promotional offers cannot be combined unless the terms displayed with a particular promotion expressly allow combining them.

The verified Kean student discount is currently 10% on eligible orders. Birthday, welcome, referral, and other promotional benefits are subject to the limits displayed with each offer. The birthday benefit currently applies to one eligible drink up to \$8, in store on the birthday shown in the account, and begins the following year if the birthday is first added on that date.

We may change future earning rates and offers after notice. The stated 12-month expiration applies to every award. If we otherwise materially reduce the redemption value of already-earned points or discontinue rewards, we will provide reasonable notice where practicable, unless fraud, misuse, law, or circumstances outside our reasonable control require different action.

10 Gift cards and all sales final policy

Gift cards are currently sold only as physical cards at the store, not through this website. Purchased gift-card funds are separate from rewards. Gift-card funds do not expire, and we do not charge dormancy or inactivity fees. A remaining balance of \$5 or less may be redeemed for cash where New Jersey law applies. Gift cards are not refundable except where required by law.

All merchandise sales are final. Merchandise cannot be returned or exchanged for a change of mind. This policy does not eliminate remedies that cannot legally be waived, including remedies for an incorrect or defective item where applicable law requires them.

11 Communications

We may contact you about an order, account security, verification, password reset, rewards administration, or material service change. Providing a mobile number does not give blanket consent to marketing texts. If you agree to order-ready texts, message and data rates may apply and you may reply STOP or contact us to withdraw permission.

Promotional email or text requires a separate choice where required. Marketing is not required to create an account or buy anything. You may use an unsubscribe link, reply STOP to marketing texts, or contact us to opt out.

12 Guest Wi Fi

Guest Wi-Fi is offered as a courtesy during business hours and may be limited or discontinued. Availability, performance, and security are not guaranteed. Use encrypted services and appropriate device protections. Do not use the network unlawfully, interfere with other users, bypass security, or access another person's device or information without permission.

13 Acceptable use and ownership

Do not submit fraudulent orders, abuse rewards, create accounts through automation, scrape personal information, introduce malicious code, interfere with the website, or attempt to access another customer's account or data. Ordinary use of accessibility technology is permitted. Website text, designs, photographs, graphics, and logos are owned by Deaf Shark or used with permission and may not be commercially exploited without authorization.

14 Website availability and liability

The website is provided on an as available basis. To the extent permitted by law, we do not guarantee uninterrupted or error-free access or that every menu description, price, hour, photograph, or availability statement is current at every moment. This does not excuse inaccurate or misleading statements or limit warranties and consumer protections that cannot legally be waived.

To the extent permitted by law, Deaf Shark is not liable for indirect, incidental, special, or consequential damages arising from the website, accounts, ordering system, rewards, or guest Wi-Fi. This exclusion does not apply to personal injury or death, fraud, gross negligence, willful misconduct, violations of the New Jersey Consumer Fraud Act or Products Liability Act, required refunds, or liability that cannot legally be excluded.

15 Suspension and closure

We may decline service, reject orders, or restrict an account for a legitimate reason, including suspected fraud, security risk, rewards abuse, repeated uncollected orders, unlawful conduct, or a material violation of these Terms, subject to applicable law and nondiscrimination requirements. Purchased gift-card funds remain valid. Points are forfeited when an account closes, whether closure is voluntary or follows a permitted suspension or termination.

16 Changes

We may update these Terms prospectively by posting a revised version and effective date. The version in effect when an order is accepted governs that order. For a material change affecting existing accounts, we will provide appropriate notice and request acceptance when required before continued use of the affected service.

17 New Jersey law and disputes

New Jersey law governs these Terms, except where another law must apply. Disputes may be brought in an appropriate New Jersey state court or a federal court located in New Jersey, subject to any nonwaivable right to proceed elsewhere. Either party may use an eligible small-claims court. These Terms do not require arbitration or waive a jury trial. Contacting us first is encouraged but is not a condition of using a legal remedy or contacting a regulator.

18 General terms and contact

If a provision is unenforceable, it will be limited or severed only as necessary and the remaining provisions continue. A failure to enforce a provision once is not a waiver. We may assign these Terms with a sale or transfer of the business while preserving existing contractual rights. Provisions concerning payments, refunds, ownership, limitations, privacy, and disputes survive where their nature requires.

Contact Deaf Shark Coffee at help@deafsharkcoffee.com, (908) 481-8884, through the website contact page, or at 900 Green Lane, Union, NJ 07083.